

		an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. Defendant's answer is inadequate under section 2030.230, as Defendant has not specified the writings from which an answer to the Interrogatory may be derived or ascertained. Moreover, Defendant has failed to respond to each subpart of the Interrogatory. Thus, further response is warranted. The Motion to Compel as to No. 15.1 is GRANTED. <u>Monetary Sanctions</u> Monetary sanctions must be imposed unless the Court finds that Defendant acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Defendant's failure to properly respond to Nos. 15.1 and 50.1 and 17.1 as it relates to Requests for Admission Nos. 39 and 40 was without substantial justification. Thus, the Court GRANTS monetary sanctions in favor of Plaintiff against Defendant and Defendant's counsel, jointly and severally, in the amount of \$1,500.00. Further responses as ordered above are to be served within 15 days from the date of this order. Monetary sanctions are to be paid within 30 days from the date of this order. Moving party to give notice.
14.	30-2024-01402013 Lara vs. Volkswagen Group of America, Inc	1. Motion to Compel Deposition (Oral or Written) Defendant Volkswagen Group of America, Inc. ("Defendant" or "VWGoA") moves the Court for an Order compelling Plaintiff Manuel Lara to appear for a deposition by remote electronic means and produce documents within fifteen (15) days, or a date that the Court otherwise deems appropriate. Pursuant to CCP§2025.450 (a), "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Here, on April 29, 2026, Defendant served its Notice of Deposition of Mauel Lara ("NOD"), noticing the remote deposition for May 18, 2026. (Decl. of Konrad¶4.) On May 11, 2026, Plaintiff Manuel Lara electronically served objections to the NOD, indicating that he will not appear for the deposition due to unavailability and to meet and confer with Plaintiffs' counsel to schedule the deposition on a mutually agreeable date. (Id¶5.)

		On May 28, 2026, Attorney Konrad sent meet and confer correspondence via e-mail to Plaintiffs’ counsel, requesting Plaintiffs’ to provide availability by June 4, 2026 for the deposition to go forward on or before June 26, 2026. (Id.¶6). On June 4, 2026 around 6:30 p.m., Plaintiffs’ counsel advised that Plaintiffs were available for deposition on July 31, 2026. (Id.¶8.) At that time, the discovery cut off was August 8, 2026. This motion was filed 6/9/2026. (ROA 92) Here, Plaintiff clearly has the burden to establish that its objection to the Deposition notice has merit. Plaintiff has not sustained that burden, nor has he established how offering one date, two months after the original deposition date, and 9 days before the discovery cut off date, was a reasonable compromise. Based on applicable law and the facts herein, the Motion is GRANTED and Plaintiff Manuel Lara is ordered to appear at his deposition on the date agreed to by the parties- currently September 17, 2026 (or on another mutually agreed upon date within the next 14 days). No sanctions were requested. Clerk to give notice to Defendant(s) and Defendant(s) to give notice to all other parties.
16.	30-2025-01463753 Zannitto vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication Defendants Ford Motor Company and Ken Grody Ford Buena Park (“Defendants”) move for summary judgment or adjudication as to all six causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5 against Defendant Ford, (5) fifth cause of action for negligent repair against Defendant Ken Grody, and (6) sixth cause of action for fraudulent inducement – concealment against Defendant Ford. Plaintiffs Frank Zannitto and Sharon Zannitto (“Plaintiffs”) oppose the motion. Defendants present 8 issues in the motion. The Court will address each issue. 1. FIRST CAUSE OF ACTION: VIOLATION OF CIVIL CODE SECTION 1793.2(D) AGAINST DEFENDANT FORD Plaintiffs’ first cause of action is for violation of Civil Code section 1793.2(d). The first cause of action is only alleged against Defendant Ford. Defendants argues that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle. Defendant cites to <i>Rodriguez v. FCA US, LLC</i> (2024) 17 Cal.5th 189 in support of the argument that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.